IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-107

CP (CAA) No. 91/230/232/PB/2021
New CA/473/2022

IN THE MATTER OF:
Experience Projects Pvt. Ltd. & Anr. With Experience Investments & Finnace Pvt. Ltd.
....Applicant

SECTION
U/s 230-232

Order delivered on 20.12.2022

CORAM:
SHRI P.S.N PRASAD,
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Mr. Rishab Sachdeva along with PCA Mr. Abhishek Nahta
For the Respondent :
For the IT Dept : Adv Puneet Rai

ORDER

New CA/473/2022:-

Heard the submissions made by the Ld. Counsel for Petitioner. This is an application filed under Rule 11 of NCLT Rules, 2016 seeking modification/amendment to the proposed merger scheme. Counsel has submitted that out of 19 companies, 4 companies have to be taken out of the proposed merger scheme due to certain objections raised by RD. As proposed merger reflects unification of entire interest of the shareholders and secured and unsecured creditors and other stakeholders, this Tribunal is of the view that fresh proposal confining to those companies which are objection free will be advantageous to the Petitioners. So, a week days' time is granted for the petitioners to have necessary instructions from their clients and pursue this application thereafter. Post this matter on **02.01.2023.**

-Sd-

(DR. BINOD KUMAR SINHA)
MEMBER (T)
Khushboo

-Sd-

(SHRI P.S.N PRASAD)
MEMBER (J)